

HOUSE No. 2136

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to preserve employer autonomy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/17/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>

HOUSE No. 2136

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 2136) of Bradley H. Jones, Jr., and others relative to employers under paid family medical leave. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to preserve employer autonomy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9 of chapter 175M of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended in subsection (c) by striking the words, “6 month”, and
3 inserting in place thereof the following words:- 3 month

4 SECTION 2. Section 9 of chapter 175M of the General Laws, as so appearing, is hereby
5 amended in subsection (c) by striking the words, “6 months”, and inserting in place thereof the
6 following words:- 3 months

7 SECTION 3. Section 9 of chapter 175M, as so appearing, is hereby amended in
8 subsection (c) by striking the word, “presumed”.

9 SECTION 4. Section 9 of chapter 175M of the General Laws is hereby amended in
10 subsection (c) by striking the following words, “Such presumption shall be rebutted only by clear
11 and convincing evidence that such employer's action was not retaliation against the employee
12 and that the employer had sufficient independent justification for taking such action and would

13 have in fact taken such action in the same manner and at the same time the action was taken,
14 regardless of the employee's use of leave, restoration to a position or participation in proceedings
15 or inquiries as described in this subsection.”.